



Company Policy and Procedure Manual

TriageLogic, LLC

Initial Version November 2013

Last update June 4, 2018

Version 6.0

Approved By:

A handwritten signature in black ink, appearing to read "Charu Raheja".

Charu G. Raheja, PhD
Chair/CEO
TriageLogic, LL

TABLE OF CONTENTS

Note: this covers:

<https://accreditnet.urac.org/Application/3271/Evidence>

Core Standards 1 to 40

I. Welcome **Core 2**

1. About Our Company	5
2. Mission Statement	5
3. Organizational Structure Core 1	6
a. Company Demographic	6
b. Diagram Oversight Management Process	9
c. Diagram Quality Oversight Process	10
d. Diagram Information/Communication Process	11

II. General TriageLogic Policy **Core 3**

1. Establishing and Creating Policy and Procedures	12
2. Document Management Policy	14
3. Company Website policy	16

III. Compliance **Core 4, 5, 10**

1. Law and Regulatory Compliance	19
a. Compliance Plan Core 4	19
b. HIPAA Compliance Policy	27
2. Inter-Departmental Coordination Core 5	31
a. TriageLogic Meeting Structure Diagram	32
3. Marketing and Sales Communication Core 10	33

IV. Business Relations for Delegated Work **Core 6.9**

Delegation Oversight Program

- a. Delegation and Review **Core 6 and 8**35
- b. Selection of Delegate **Core 7 and 8**36
- c. Delegation Oversight **Core 6 and 9**38

V. Business Relationships with Clients **Core 11**

- Written Business Agreements/Client Contract Review 40

VI. Client Management and Relations **Core 12, 17, 28**

- 1. Client Satisfaction/ End user Satisfaction 42
- 2. Patient Evaluation Survey Sample..... 44
- 3. Client Satisfaction Survey 45
- 4. Quality Management Program..... 46
 - a. Quality Flow Diagram by Committee..... 51
 - b. Quality Improvement Projects 54

VII. Data Integrity and Information Regulation **Core 13, 16**

- 1. Information Management **Core 13**55
- 2. Business Continuity/Disaster Recovery **Core 13, 14, 15**58
- 3. Information Security Policy **Core 15 a b c**61
- 4. HIPAA Compliance Policy **Core 16**65

VIII. General Staff Employment **Core 25 to 30**

- 1. General Staff Employment Information 68
- 2. HIPPA Compliance Policy 75
- 3. Staff Performance Appraisal Form..... 78
- 4. Employee Personnel File Checklist **Core 25, 26**81
- 5. Staff Orientation/Training Attestation **Core 27**82
- 6. Training Participation Form..... 83

IX. Clinical Staff Core 30.35

1. Clinical Staff Credentialing Core 30, 31 3284
2. Financial Incentives Core 3388
3. Client and Consumer Access to Program Services Core 3489
4. Consumer and Medical Complaint process Core 3589
 - a. Incident Report Form 91

X. Consumer Protection and Empowerment Core 37.40

1. Consumer Safety Mechanism Core 38100
2. Health Literacy Core 40 101

1. Welcome

CORE 2

Welcome to Policy and Procedure Purpose/Interpretation

The purpose of this Manual is to provide employees of **TriageLogic (“TL”)** with general information regarding the policies and procedures of the Company. Nothing in this manual or in any other documents (such as benefit statements, performance evaluations, or any other written or verbal communications) should be construed to create an employment agreement/contract (either expressed or implied) for anything other than at-will employment.

Writing or Revising Policy or Procedure

If you are a TriageLogic employee who is writing or revising a policy or procedure, please consult section # 2 of this manual: Policy and Procedure Development & Maintenance. The policy outlines the policy and procedure formatting and organization, and the process for approval of policies and procedures.

About Our Company **CORE 2c**

Today, TriageLogic is a leading provider of quality, affordable **triage solutions**. We are a physician-led company that offers leading-edge nurse triage services.

We serve busy practices in need of a phone triage system for patients. Some of our physician groups are part of a hospital or a health system. We service all locations in the United States. All groups of patients (e.g., pediatric, adult, geriatric) are covered by TriageLogic.

Triage Logic Nurse Triage on Call provides telephone nurse triage coverage for providers and their patients. **CORE 2b**

How it works:

1. Patient calls and talks to a triage representative
2. Nurse calls patient back and directs patient to the appropriate level of care
3. As the nurse handles the call, the system documents all the details and the encounter is sent to the physician's office

Key Features:

- Gold Standard Protocols from Schmitt-Thompson
- All calls recorded
- All licensed registered nurses
- Call back average time less than 30 minutes

Mission Statement **CORE 2a**

Our mission is to continue to lead the field of nurse triage. We commit our expertise, compassion and reliability to services that exceed expectations of medical professionals and their patients.

“Taking care of our communities one call at a time”

Date of incorporation as legal entity: November 2006, Nashville, TN

Company Demographics CORE1

- A. Advisory Board – The board serves as an advisory committee to help the CEO plan strategy and keep up-to date with nursing, regulatory and other requirements.

Advisory Board Members



Charu Raheja, PhD – Chair and CEO
PhD: Finance, New York University, NY
Special interests: CEO compensation, corporate governance, and healthcare research



Ravi Raheja, MD – Medical Director and COO
MD: Robert Wood Johnson Medical School, NJ
Pediatric Residency: Schneider Children's Hospital, NY
Special interests: General pediatrics, medical education and medical information technology



John Roberts, Esq.
JD: University of Minnesota Law School, MN
Partner, New Counsel, PLC, provider of legal and business advice to technology startups
Former Shareholder at Leonard, Street and Deinard, large corporate firm in Minneapolis, Minnesota
In-house legal positions, including General Counsel, Deputy General Counsel or Corporate Counsel
Texas Instruments, DSC Communications Corporation, Net Perceptions and ValueVision Media Inc.
(all publicly traded companies)



Shelley Rogers, RN
Associates in Nursing, Forsyth Technical Community College, NC
Previous Positions: Labor and Delivery Nurse at Forsyth Hospital, Behavioral Emotional Handicap (BEH) Teacher's Aide, NBHA District Director- District 6
Special interests: Youth Ministry and Missions

CORE 1 and 2d

- B. Personnel types and number (professional, clinical, technical, administrative support, employee, contractor, etc.):

Professional / Management

1. Executive (1) – The CEO plans, manages, and ensures the efficient implementation of all objectives, goals and mission of the company, assures company's compliance with all city, state, and federal laws, initiates all company policies and regulations, ensures the company's increasing profitability and relevance, and represents the company in all public events.
2. Operational / Administrative (1) – The COO manages all operational aspects of the company including administrative, and reporting/evaluation systems and procedures, and assists the CEO in the implementation of company objectives, goals and mission.
3. Medical / Clinical (4)
 - a) The Medical Director oversees all clinical staff training and continuing education, and, along with the technological department develops new technologies to improve the services of the company.
 - b) Nurse Directors ensure the efficiency and continuing education of nurses, ensures compliance with the state board of nursing and state nurse practice requirements and related regulations, coordinates and discusses with Medical Director and COO on number and quality of phone calls served by the company
 - c) Nurse Managers manage nurses' schedules, maintain and update nursing guidelines, maintain nursing staff and ensures continuous availability of nurse service, conducts planning, monitoring and evaluation with nurses, provides clinical support, ensures the effective implementation and use of relevant software, ensures all office equipment and supplies are available and working
 - d) Client Relations supervises the day-to-day management of all clients. Serves as the primary contact person for nurse triage clients and the point of contact between the nurse managers, medical director and the clients.

Clinical (approximate 30 FTE's or 75 Part Time) – Nurses who directly provide nurse advice line to patients.

Technological/Technical (4) – These are various staff who: 1) design new technologies or modules that become relevant as more practices use the software, 2) provide software support to clients and ensure that all relevant technological systems are working efficiently all the time, 3) ensure the security of all clients' information, 4) provide training and support for intra-office communication systems, and 5) website development.

Sales (1) - Conducts and follows up sales calls, and clinches business contracts.

Marketing (3) – Designs, implements, and analyzes marketing strategies and paraphernalia, and designs and implements activities/strategies for continuing client relationships.

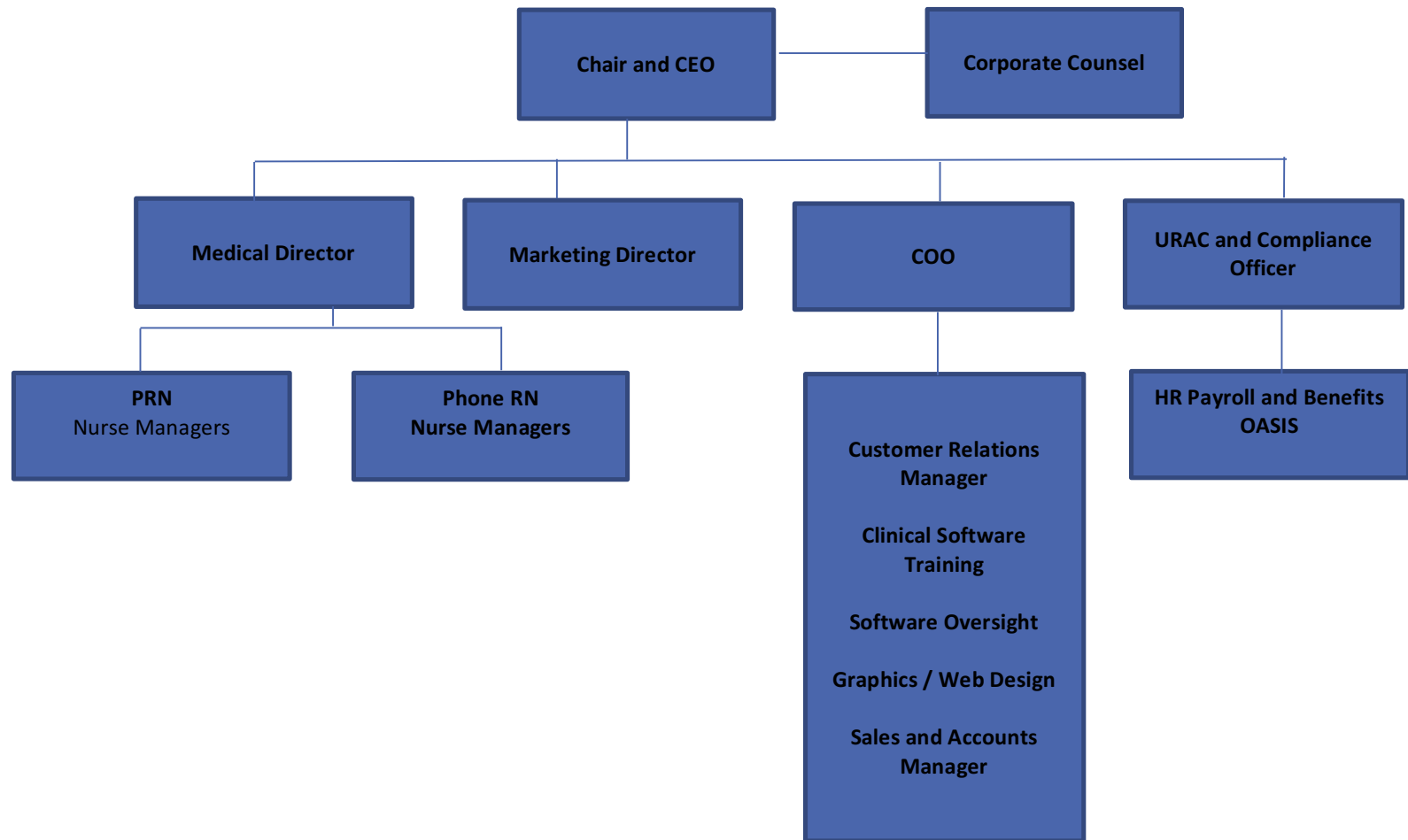
Administrative (2) – Files all company documents, prepares invoices, receipts and liquidation reports, and conduct other office support such as mailing/posting, scanning, printing documents, etc.

Chief Executive Name: Dr. Charu Raheja charu.raheja@triagelogic.com

Corporate Medical Director Name: Dr. Ravi Raheja ravi.raheja@triagelogic.com

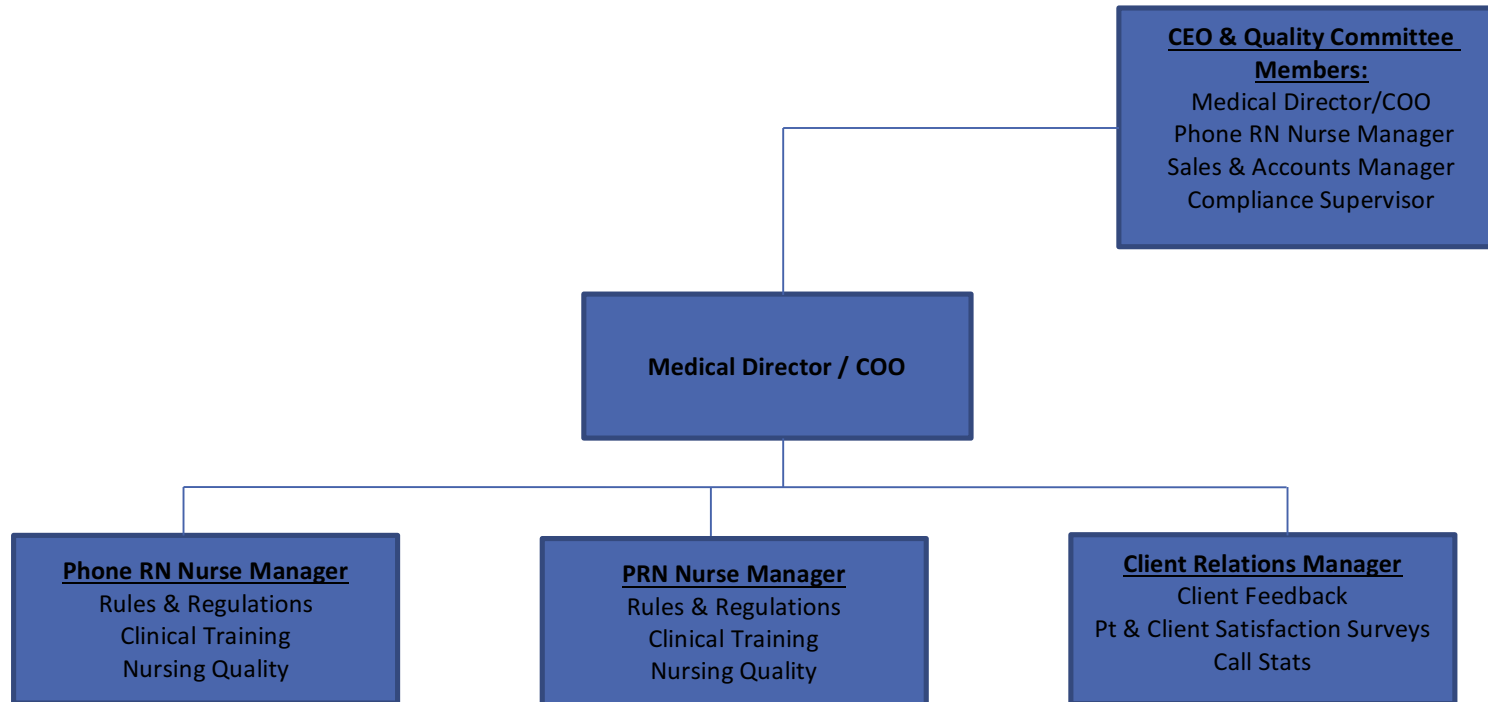
Compliance Officer Name: Julie Teague, CMAA julie.teague@triagelogic.com

Oversight Management Process



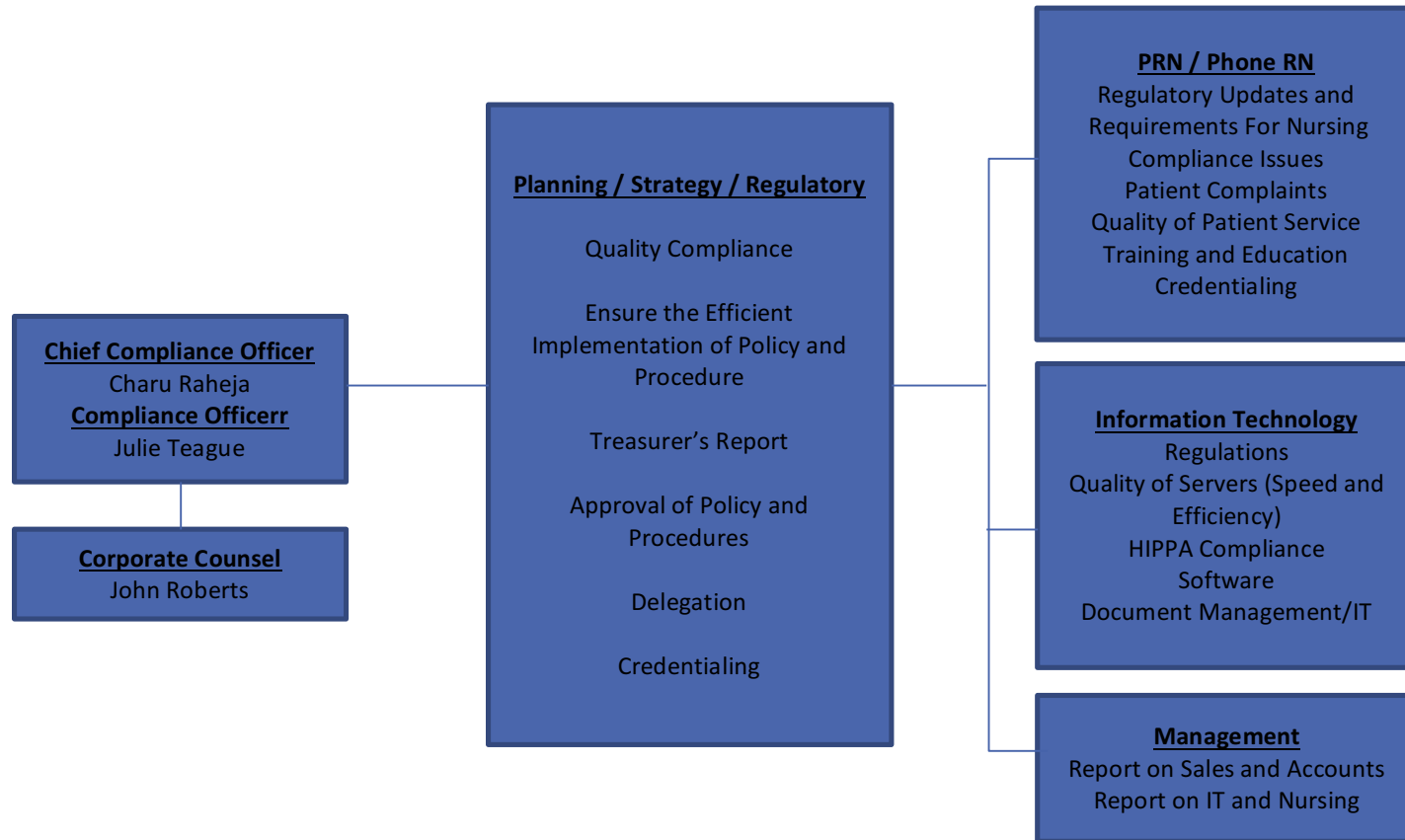
Quality Nursing Oversight Process

All report to the Medical Director and COO. If there are any complaints, these are sent to the Client Relations Manager for resolution, and forwarded to the Medical Director for discussion and further attention, if needed. Rules and Regulations Managers are informed of the cases in order to avoid similar complaints in the future, or in order to formulate new policies procedures, if necessary. These are then reported to the CEO.



Information / Communication Flow

Medical Director / COO meets with Sales/Accounts, IT, and Nursing, then reports to CEO. Compliance Officer-cum-Chair and CEO meets with Marketing and Corporate Counsel and shares with Medical Director/COO the results of the meetings.



General TriageLogic Policy

CORE 3

This policy/procedure applies to: ☒ Triage Logic ☐ Phone RN ☒ PRN	Effective Date: 11/13/13
Name of Policy/Procedure: Policy & Procedure Development and Maintenance	Most Recent Revision Date: 9/27/16
Policy #: 1	Most Recent Review:

I. POLICY

TriageLogic will maintain a policy and procedure manual online. A new electronic copy of the P/P in its entirety will be emailed to replace the existing manual should a revision or update occur. The P/P will be emailed to the managers and the managers are responsible to distribute to necessary staff. The policy/procedure will be emailed to PRN and other staff as it relates to their job.

TriageLogic (TL) is dedicated to standardizing the way business is conducted among all staff (employed and contract). When people do things the same way every time, they eventually become able to complete the process in a shorter amount of time, which means they can do more work in the same amount of time. Consistency also breeds confidence. Consistent methods assure clients that the company will handle accounts with the same care and precision during each interaction. Consistency helps employees and alike know what to expect when faced with a given situation.

TriageLogic has employees in multiple locations and/or employees that work different shifts, staff that leave the company and new employees will join the company. The easiest way to communicate expectations and processes to all employees without missing anyone, leaving information out or being inconsistent is to write and distribute a formal policy and procedure document. Making sure that everyone has access to the same information assures quality management.

All policies and procedures will be reviewed and approved by the Planning/Strategy/Regulatory Committee annually, between the months of August and October. This includes all policies and procedures related to the following: Clinical Policies, Quality, and IT. **CORE 3c**. Since policies and procedures can change throughout the year, new policies and procedure revisions can be brought to any weekly committee for approval and documented in the minutes.

Depending on the change made to the policy/procedure, employee training will take place at individual monthly meetings. In addition, when the policy is updated, the employee will receive a current copy of the policy/procedure manual in its entirety and will attest they received it and will comply.

A standardized format for policies and procedures will not be required at TriageLogic as some forms are better than others for a given process; however, the following are required of every TL policy and procedure.

Effective dates, review dates (including the date of the most recent revision) and an approval signature from the Planning/Strategy/Regulatory Committee.

CORE 3 (d)

The **Effective Date** is defined as the date upon which the policy or procedure is to take effect. This date may be different from the date upon which the policy or procedure was recorded with a revision date.

The **Most Recent Revision** is defined as assigning a unique revision number to a policy or procedure and dating it. These numbers are generally assigned in increasing order and correspond to a newer version of a policy or procedure. Revision control is used for keeping track of incrementally different versions of policies and procedures.

The **Most Recent Review** date is the date that the policy or procedure was reviewed or evaluated. The revision date does not change on the policy or procedure unless a revision was made to it.

Revision of an Existing Policy/Procedure

Effective Date: 09/1/13

Most Recent Revision 10/1/13

Most Recent Review: 10/1/13

Related Documents

See Master List of Policies and Procedures

II. Document Management Policy (Managing Documents) **CORE 3a, c, d**

This policy/procedure applies to: ☒ Triage Logic ☐ Phone RN ☒ PRN	Effective Date: 11/13/13
Name of Policy/Procedure: Document Management	Most Recent Revision Dated:
Policy #: 2	Most Recent Review: 9/27/16

A. PURPOSE

This policy establishes the framework under which official records and documents of TriageLogic are created and managed.

B. POLICY

Records and documents created, received or used by Triage Logic staff in the normal course of business, including all email communication, are the property of the Company, unless otherwise agreed. This includes reports compiled by external consultants commissioned by the Company.

The Company email system is Company property, and as such, is subject to monitoring. System monitoring is done for employee protection and the protection of the rights or property of the Company.

As noted above, electronic mail is subject at all times to monitoring, and the release of specific information is subject to applicable laws and Company rules, policies and procedures on confidentiality. Existing rules, policies and procedures governing the sharing of confidential information also apply to the sharing of information via commercial software.

Triage Logic's official records constitute its corporate memory, and as such are a vital asset for ongoing operations, and for providing evidence of business activities and transactions. They assist in making better informed decisions and improving business practice by providing an accurate record of what has occurred before.

Therefore, **records** are to be:

- Managed in a consistent and structured manner
- Managed in accordance with Triage Logic guidelines and procedures
- Stored in a secure manner; (Call Center Software System)

And **documents** are to be:

- Created and managed by authorized officers and their direct subordinates

Recordkeeping and Document Management System

TriageLogic's recordkeeping and document management system assists staff to capture records, protect their integrity and authenticity, provide access through time, dispose of records no longer required in the conduct of its business, and ensure records of enduring value are retained. It also facilitates the creation, version control, authority of official corporate documents.

TriageLogic's recordkeeping and document management system is managed by the office of the CEO.

TriageLogic has authorized recordkeeping and document management system in either paper form, Sugar Sync and in its Call Center SoftwareSystem.

All staff is to use the Call Center Software and Sugar Sync to ensure that:

- official records and documents are routinely captured and subjected to the relevant retention and disposal authority;
- access to records and documents is managed according to authorized access and appropriate retention times regardless of location;
- records and documents are protected from unauthorized alteration or deletion;
- documents are version controlled as required;

All staff, who create, receive and keep records and documents as part of their daily work, should do so in accordance with established policies, procedures and standards. Staff should not undertake disposal of records without authority – and only in accordance with authorized disposal methods.

•
•
•
•

III. Company Website Policy **CORE 3a**

This policy/procedure appliesto: X Triage Logic __ Phone RN X PRN	Effective Date:4/16/2013
Name of Policy/Procedure: Website Policy	Most Recent Revision Date:4/16/2013
Policy #: 3	Most Recent Review: 9/27/16

PURPOSE

This policy explains our information practices, defines your privacy options and describes how your information is collected and used.

This policy covers the website at <http://www.triagelogic.com> (the "TL Website"). The TL Website is owned and operated by Triage Logic Management and Consulting, LLC ("TLMC"), a Tennessee limited liability company ("TL"). Should you have privacy questions or concerns, send an email to info@triagelogic.com.

By using visiting the TL Website, you agree to the collection and use of information in the manner described in this policy. TL shall have right at any time and without prior notice, at its sole discretion, to revise this policy. If we make material changes to this policy, we will notify you at this TL Website, by email, by means of a notice the next time you log in to the TL Website, or by means of a notice on the TL Website homepage. Such revisions and additions shall be effective immediately upon notice. You are responsible for reviewing the TL Website periodically for any modification to this policy. **Any access or use of the TL Website by you after notice of modifications to this policy shall constitute and be deemed to be your agreement to such modifications.**

The Information we collect

This policy applies to all information collected on the TL Website and any information you provide to TL. You will most likely provide us personal information to us when you request information from TL, register as a user of TL Website or participate in certain TL promotions or events. The personal information we may collect includes: your name, address, email address, name of employer and phone numbers.

Posting or Sending Information

The TL Website may permit you to post information to the TL Website or send information to TL. When you post information to the TL Website, other site visitors can also view that information. We urge you to exercise caution when providing personally identifiable information to TL or the TL Website.

Our Collection of Your Data

In addition to the personal information you supply, we may collect certain information to evaluate how visitors, guests, and customers use the TL Website. We collect data to make the TL Website work better for you in the following ways: to improve the design of the TL Website, to provide personalization on the TL Website and to evaluate the performance of our marketing programs. The technologies we may use to gather this non-personal information may include “IP” addresses, “cookies”, browser detection, and “weblogs”.

How we Use Information

Our primary goal in collecting your information is to provide you with a personalized, relevant, and positive experience with the TL Website.

You can register on the TL Website to receive promotions and updates, or to be contacted for product information purposes. You can control your privacy preferences regarding such marketing communications (see the section below entitled “Your Privacy Preferences”).

From time to time, you may be invited to participate in optional customer surveys or promotions, and TL may request that you provide some or all of the above listed personal information in those surveys or promotions. We use information collected from surveys and promotions to learn about our customers in order to improve our services and develop new products and services of interest to our customers.

IP addresses define the Internet location of computers and help us better understand the geographic distribution of our visitors and customers and manage the performance of the TL Website. Cookies are tiny files placed onto the hard drive of your computer when you visit the TL Website, so we can immediately recognize you when you return to the TL Website and deliver content specific to your interests. You may modify your browser preferences to accept all cookies, be notified when a cookie is set, or reject all cookies. Please consult your browser instructions for information on how to modify your choices about cookies. If you modify your browser preferences, certain features of the TL Website may not be available to you.

We may detect the type of web browser you are using to optimize the performance of the TL Website and to understand the mix of browsers used by our visitors, guests, and customers. To learn about how people use our site, we examine weblogs, which show the paths people take through the TL Website and how long they spend in certain areas.

TL may contract with unaffiliated third parties to provide services such as customer communications, website analytics and other services. When we do this, we may provide your personally identifiable information to third parties only to provide those services, and they are not authorized to use your personally identifiable information for any other purpose.

Our Commitment to Data Security

Access to your data is limited to authorized TL staff or approved vendors. Although total security does not exist on the Internet, TL shall make commercially reasonable efforts to safeguard the information that you submit to TL or that TL collects.

Use of the TL Website by Children

The TL Website is not intended for use by children under the age of 13.

Your Privacy Preferences

When you sign up as a registered user of the TL Website you may begin receiving marketing communications such as e-mail newsletters, product and service updates and promotions. Our customers generally find this type of information useful. If you do not want to receive these updates, you must “opt-out” by unchecking the “Add me to the mailing list” box on the registration page, or should you choose to opt-out after registering, you can use any of the following methods: select the “unsubscribe” link at the bottom of the email and follow the opt-out instructions; or send an email to unsubscribe@triagelogic.com.

How to Access or Correct Your Information

You can access and maintain your personally identifiable information that we collect by sending us an email to info@triagelogic.com. To protect your privacy and security, we require a user ID and password to verify your identity before granting access or making corrections to such personally identifiable information.

Disclosure of Information

We reserve the right to disclose your personally identifiable information as required by law and when we believe that disclosure is necessary to protect our rights and/or comply with a judicial proceeding, court order or legal process. It is also possible that TL would sell the company or all or substantially all of its assets. In any transaction of this kind, customer information, including your personally identifiable information, may be among the assets that are transferred. If we decide to so transfer your personally identifiable information, you will be notified by an email sent to the last known email address in our files and/or by notice posted on the TL Website.

Privacy and Other Websites

The TL Website may contain links to other websites. TL is not responsible for the privacy practices of these other sites. We encourage you to be aware when you leave our site, and to read the privacy statements of each web site that collects personally identifiable information. Some linked sites may be co-branded with our trademarks and those of our business partners. They may have the look and feel of www.triagelogic.com, but the URL in your browser window will indicate that you are visiting a different site. This policy only applies to information collected by TL.

Company website policy will at all times be available in TL website. Currently, it is listed in the following area: <http://www.triagelogic.com/Privacy>

2. Compliance – CORE 4 & 5

1. Law and Regulatory Compliance – General

This policy/procedure applies to: ☒ Triage Logic ☐ Triage Logic Management ☒ Phone RN ☒ PRN	Effective Date: 11/13/13
Name of Policy/Procedure: Regulatory Compliance Policy	Most Recent Revision Date: 10/30/15
Policy #: 4	Most Recent Review: 9/27/16

I. PURPOSE

This policy applies to Triage Logic Management & Consulting, LLC (“TL”) and shall apply to all employees of TL, agents of TL and employees of TL subcontractors (collectively the “Service Providers”).

II. POLICY

The purpose of the policy is to establish a process to report Potential Compliance Issues, including any potential identified issues or questions associated with TL’s Standards of Conduct, TL policies and procedures, laws and regulations relating to Federal health care programs, including but not limited to Health Insurance Portability and Accountability Act (HIPAA), and URAC. Furthermore, to the extent that there is a potential violation of a criminal, civil, or administrative law, it is the intent of this policy to allow issues to be promptly and thoroughly investigated and appropriate corrective action to be implemented.

PCI - Potential Compliance Issues. All individuals are expected to report PCI immediately upon discovery or notification of the same. Reports can be made to an immediate supervisor, department director, Facility Compliance officer, Chief Compliance Officer or designee.

If reports are made to a supervisor or department director, that individual is expected to immediately forward the report to the Medical Director and to the CEO.

III. PROCEDURE

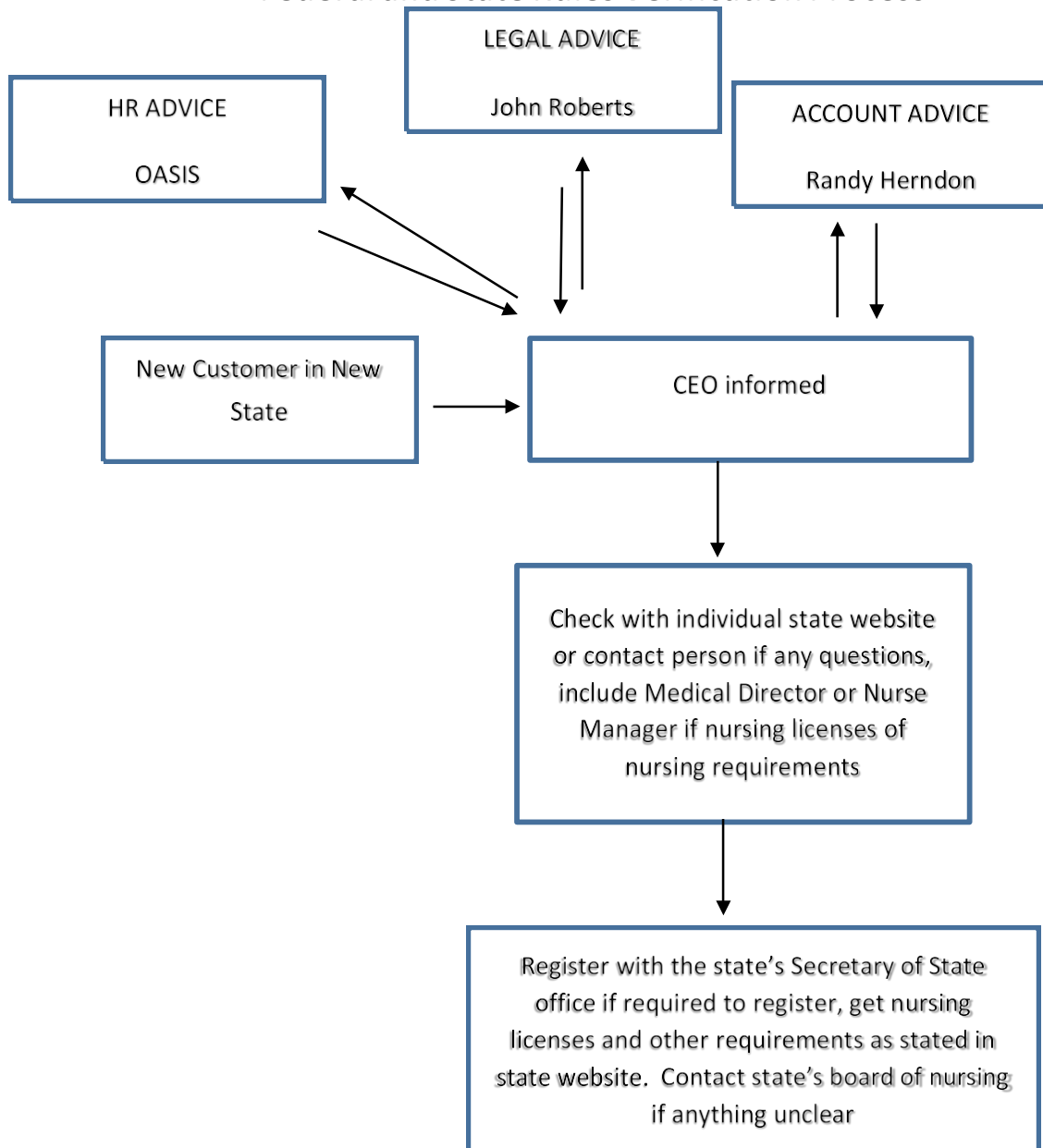
a. Compliance Plan for TriageLogic, LLC – CORE 4

TriageLogic, LLC (“TL”) voluntarily implements a compliance program to foster an environment of ethical and legal behavior in support of the mission of TL. The main elements of TriageLogic’s Compliance Plan are:

1. Commitment to Compliance
 - a.) Standards of Conduct
 - b.) Marketing

- c.) Retention of Records/Documentation
- 2. Designation of a Compliance Officer
- 3. Training and Education for Compliance
- 4. Communication of Compliance Guidelines
- 5. Disciplinary Guidelines
- 6. Auditing and Monitoring
- 7. Correction Action

Federal and State Rules Verification Process



Additional:

1. Annual meeting with accountant to discuss any changes in law and need for new filings (2nd quarter of the year).
2. Meeting with John Roberts upon renewal of contracts or for new contracts.

1. Commitment to Compliance

a.) Standards of Conduct

TriageLogic promotes adherence to the Compliance Program as a major element in the performance evaluation of all staff members. TriageLogic employees are bound to comply, in all official acts and duties, with all applicable laws, rules, regulations, standards of conduct, including, but not limited to laws, rules, regulations, and directives of the federal government and the state of Florida, URAC standards and rules, and policies and procedures of TriageLogic.

These current and future standards of conduct are incorporated by reference in this Compliance Plan.

All candidates for employment shall undergo a reasonable and prudent investigation. Criminal background checks will be performed on all staff that will have access to PHI, along with verification of licensure status, certification credentials verification and reference checks, to the extent permitted by law. Due care will be used in the recruitment and hiring process to prevent the appointment to positions with substantial discretionary authority, persons whose record (professional licensure, credentials, prior employment) gives reasonable cause to believe the individual has a propensity to fail to adhere to applicable standards of conduct. **CORE 4 b**

All new employees will receive orientation and a copy of TriageLogic's compliance policies and procedures. Participation is a required training condition of employment.

Every employee will receive periodic training as changes or revisions occur to the initial compliance training received upon hire.

In addition, all employees with access to patient information or any other private information are required to sign our standard HIPAA agreement (as shown below at the end of this table).

Non-compliance with the plan or violations will result in sanctioning of the involved employee(s) up to, and including, termination of employment.

b.) Marketing

TriageLogic will promote only honest, straightforward, fully informative, and non-deceptive marketing.

c.) Retention of Records/Documentation

Triage Logic will ensure that all records required by federal and/or state law are created and maintained. All records will be maintained for a period of no less than seven years. Audio records will be kept for a period of 3 months. Documentation of compliance efforts will include staff meeting minutes, memoranda concerning compliance, problems identified and corrective actions taken, the results of any investigations, and documentation supportive of assessment findings and plan of care.

2. Designation of a Compliance Officer

TriageLogic has a designated compliance officer to serve as the coordinator of all compliance activities.

The responsibilities of the compliance officer are:

- Overseeing and monitoring the implementation of the compliance program
- Reporting as needed to the Medical Director/COO and subsequent affected committees of compliance issues, policy and procedure changes/revisions.
- Developing and distributing or giving to the CEO to distribute all written compliance policies and procedures to all affected employees.
- Periodically revising the program in light of changes in the needs of the organization and in the law; and changes in policies and procedures of government.
- Developing and coordinating educational and training programs that focus on the elements of the compliance program and seeks to ensure that all employees are knowledgeable of, and comply with, pertinent federal and state standards.

The compliance officer has the authority to review all documents and other information relative to compliance activities, including, but not limited to, records concerning marketing efforts, arrangements and agreements with clients, HIPAA documentation and patient data.

3. Conducting Training and Educational Programs **CORE (b)**

TriageLogic requires all employees to attend specific training upon hire and on a p.r.n. basis thereafter. This will include training in federal and state regulations, program requirements, policies and procedures. The training will emphasize TL's commitment to compliance with these legal requirements and policies. The amount of training will depend on the degree of compliance issues handled by the employee based on the job description.

4. Communication **CORE 4c**

TriageLogic has an open-door policy where employees may seek clarification from the compliance officer in the event of any confusion or questions regarding a policy or procedure.

Any person who has reason to believe that a potential problem or questionable practice is or may be in existence should report the circumstance to the Compliance Officer. Such reports may be made verbally or in writing, and may be made on an anonymous basis. The Compliance Officer will promptly document and investigate reported matters that suggest substantial violations of policies, regulations, statutes, or program requirements to determine their veracity. The compliance officer will maintain a log of such reports, including the nature of the investigation and its results. All compliance issues will be shared with the Medical Director/COO promptly.

The Compliance Officer will work closely with legal counsel who can provide guidance regarding complex legal and management issues.

Compliance officer or the CEO will report any changes to policy and new laws and regulations during the general management meeting. Such matters will be documented in the minutes and emailed to all employees who are affected by the new law or policy.

5. Disciplinary Guidelines

All members of TriageLogic will be held accountable for failing to comply with applicable standards, laws, and procedures. Supervisors and/or managers will be held accountable for the foreseeable compliance failures of their subordinates.

The supervisor or manager will be responsible for taking appropriate disciplinary actions in the event an employee fails to comply with applicable regulations or policies. The disciplinary process for violations of compliance programs will be administered according to practice protocols (generally oral warning, written warning, suspension without leave, leading to termination) depending upon the seriousness of the violation.

If the deviation occurred due to legitimate, explainable reasons, the compliance officer and supervisor/manager may want to limit disciplinary action or take no action. If the deviation occurred because of improper procedures, misunderstanding of rules, including systemic problems, the compliance officer will take immediate actions to correct the problem.

After receipt of an investigative report, the Compliance Officer and Medical Director/COO shall determine the action to be taken upon the matter.

6. Auditing and Monitoring

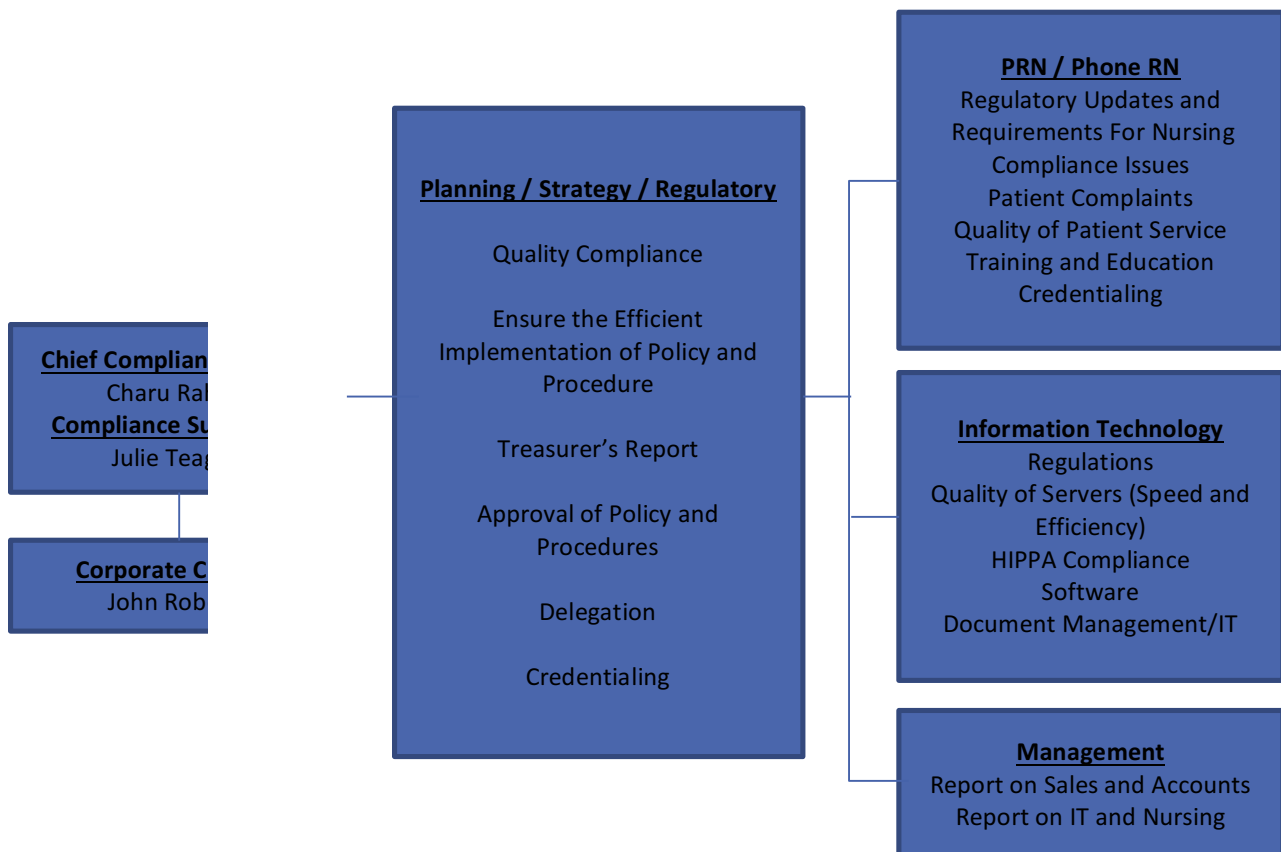
The Compliance Officer will conduct evaluation of compliance on an as needed basis and regularly report to the Medical Director/COO. Compliance officer is responsible for:

- a) Keeping track of laws and regulations in the jurisdictions that the company conducts business. This may involve seeking guidance from an outside counsel on the current laws

and regulations, seeking help and guidance from the medical director, the nurse supervisor, or any other party that can help with information on rules and regulations. Currently, TriageLogic has a contract with Corporate Counsel to assist TL in staying abreast of law and regulations. Corporate Counsel is responsible for bringing to the attention of TL applicable laws and regulations related to their business model. **CORE 4a** The Medical Director is also responsible for keeping track of laws and regulations related to nursing and reporting it to the CEO. **CORE 4b**

- b) Ensuring compliance with the law and policy by evaluating documents, auditing fillings, etc. **Core 4b**
- c) Searching available databases such as:
<https://www.gsaig.gov/node/31> and
www.dol.gov/ofccp/regs/compliance/preaward/debarlst.htm (businesses) and
<https://www.npdb.hrsa.gov/hcorg/pds.jsp>, and <https://exclusions.oig.hhs.gov/> to ensure that employees have not been barred from working in healthcare, upon hire. An attestation will be signed by each person performing the applicable checks.

See chart below on the compliance requirements and reporting (Figure 3a)



7. Corrective Action

Violations of TriageLogic's compliance program, failure to comply with applicable state or federal law, and other types of misconduct may threaten TL's status as a reliable, honest, and trustworthy business. Detected, but uncorrected, misconduct may seriously endanger the mission, reputation, and legal status of TriageLogic. Consequently, upon reports or reasonable indications of suspected noncompliance, the Compliance Officer must initiate an investigation to determine whether a material violation of applicable laws or requirements has occurred.

The steps in the internal investigation may include interviews and a review of relevant documentation. Records of the investigation should contain documentation of the alleged violation, a description of the investigative process, and the documents reviewed, the results of the investigation, and the corrective actions implemented.

If the results of the internal investigation identify a problem, the response may be development of a corrective action plan, and reporting to the affected parties. **Corrective action should be completed within 30 business days. CORE 4c**

This compliance plan may be altered or amended in writing only with the concurrence of the Compliance Officer. The adoption of this Compliance Plan has been approved and authorized as designed below.

<u>Charu G. Raheja</u>	<u>1/18/17</u>
Charu G. Raheja, PhD, CEO	Date

<u>Ravi K. Raheja</u>	<u>1/18/17</u>
Ravi K. Raheja, MD, Medical Director, COO	Date

<u>Julie Teague</u>	<u>1/18/17</u>
Julie Teague, CMAA, Compliance Officer	Date

This policy/procedure applies to: X Triage Logic X Phone RN ___ PRN	Effective Date: 2/21/14
Name of Policy/Procedure: Verification of State, Federal and Nursing Laws for TriageLogic	Most Recent Revision Dated:
Policy #: 37	Most Recent Review: 9/27/16

I. Purpose

To understand what state and federal laws and regulations apply to providing nurse triage services and to ensure that these laws and regulations are followed by staff of TriageLogic. To implement a process to monitor changes to state and federal laws related to nurse triage services and put these changes into effect.

II. Procedure

A. Steps for Initial Entry Into a State To Provide Nurse Triage Services

1. Determine if the state participates in the nursing compact or requires state specific licensure for the nurses providing nurse triage services.
2. Review the State Board of Nursing to see what the nurse requirements are for that state to practice telephone triage nursing. Determine if there are any special laws on what a nurse can or cannot do in that state related to triage services.
3. Check with Legal Counsel to see what the corporate requirements are for offering triage services in that state. (For example: in California you must file as an LLC to do business in that state).
4. Use NexisLexis and/or Westlaw and/or internet search to research any state and federal laws related to nurse triage.

Once the four steps above have been completed, the results will be added to the crosswalk for annual monitoring of each states rules and regulations.

B. Steps for Annual Monitoring after Initial Entry Into a State

1. The Compliance Officer or an RN within the company will review the states nurses' license requirement (compact or state specific) and review the board of nursing to see if there have been any interval changes for nurse triage requirements.
2. Check with legal counsel to see if there has been any change to the state laws to provide services in that state.
3. Use NexisLexis and/or Westlaw and/or internet search to research any state and federal laws related to nurse triage.

The Corporate Compliance Officer will be responsible for monitoring on a yearly basis all State, Federal and Nursing Laws.

The Compliance Officer along with the CEO and Medical Director will review any changes to policies and procedures that need to be made to meet new requirements.

Affected staff will receive education on any new rule or law that may affect their position.

The Compliance Officer will verify that all new rules and regulations are being followed with mechanisms that deem appropriate to given changes (i.e., case audits, etc. as needed).

TriageLogic HIPAA Compliance Policy (updated December 2012)

This policy/procedure applies to: ☒ Triage Logic ☐ Phone RN ☒ PRN	Effective Date: 12/2012
Name of Policy/Procedure: HIPAA Compliance	Most Recent Revision Date: 12/2012
Policy #: 5	Most Recent Review: 9/27/16

This **TRIAGE HIPAA COMPLIANCE POLICY** of Triage Logic Management & Consulting, LLC (“Triage”) shall apply to all employees of Triage, agents of Triage and employees of Triage subcontractors (collectively the “Service Providers”). All agents with access to patient data must sign this document.

PURPOSE OF THIS POLICY. Service Providers are providing various health care services for Triage (the “Services”) which may involve the observation or use of patients/patient records of hospitals, clinics or other health care organizations or entities that have entered into services agreements with Triage (these various health care groups shall be collectively referred to as the “Covered Entities”). In the course of providing such Services, Service Providers from time to time have access to or possession of Covered Entity’s patient protected health information or “PHI,” as such term is hereinafter defined. This Policy shall set forth the terms and conditions pursuant to which Service Providers shall use, secure and keep in confidence such PHI.

1. **Definitions.** For the purposes of this Policy, the following terms shall have the following meanings:
 - (a) **Electronic Protected Health Information or “EPHI.”** A subset of PHI, consisting of any PHI that is transmitted by electronic media or maintained in electronic media.
 - (b) **Individual.** The person who is the subject of the PHI, and has the same meaning as the term “individual” as defined by the HIPAA Regulations.

- (c) **HIPAA Regulations**. Those regulations codified at Title 45 of the Code of Federal Regulations (C.F.R.) and relating to privacy and security of PHI.
- (d) **Protected Health Information or “PHI”**. Any information concerning an Individual, whether oral or recorded in any form or medium: (1) that relates to the past, present or future physical or mental condition of such Individual; the provision of health care to such Individual; or the past, present or future payment for the provision of health care to such Individual; and (2) that identifies such Individual with respect to which there is a reasonable basis to believe the information can be used to identify such Individual, and shall have the meaning given to such term under the HIPAA Regulations.
2. **Disclosures and Use of PHI**. Subject to this Policy, Service Providers shall not the use the PHI except as necessary to provide the Services. Service Providers hereby agrees that the PHI provided or made available to it shall not be further used or disclosed other than as permitted or required by this Policy. Without limiting the foregoing, Service Providers agrees: (i) not to share PHI with anyone not directly involved in the patient’s care or treatment; (ii) not to discuss PHI in areas where it may be overheard; (iii) not to access any PHI without specific direction by Triage; (iv) not to attempt access to PHI for personal reasons; (v) to inform Triage of any personal relationships which Service Providers may have with a patient or patient’s family whose PHI Service Providers may access; (vi) if allowed access to EPHI by Triage or the Covered Entity, to clear computer screens of PHI before leaving the screen; (vii) to return any PHI provided on paper to the professional staff member or employee who provided it or to dispose of it within the facility using a shred-it box or as otherwise directed by the person who provided it; (viii) not to store or transmit any PHI using a portable device or any other electronic means; (ix) not to remove PHI in any form from the Covered Entity’s facility; and (x) not to make any photographs, videos, voice recordings or any other reproduction of any PHI.
3. **Service Providers Obligations**.
- (a) **Right of Access to PHI**. Service Providers and its representatives and employees shall forward all Individual requests for access to PHI to Triage within one (1) business days of receipt.
- (b) **Amendment of PHI**. Service Providers shall forward all requests for amendments to an Individual’s PHI to Triage within one (1) business days of receipt.
- (c) **Accounting of Disclosures**. Service Providers shall forward all requests for an accounting of disclosures of PHI to Triage within one (1) business days of receipt.
- (d) **Reports of Improper Use or Disclosure and Cooperation**. Service Providers shall report in writing to Triage within one (1) business day of discovery any use or disclosure of PHI not provided for or allowed by this Policy. Service Providers shall cooperate with Triage and the Covered Entity in any review/investigation of an actual or potential breach of HIPAA privacy or security regulations.

4. **Termination and Breach**

- (a) **Immediate Termination**. In regard to Triage employees, Triage reserves the rights to discipline any employee of Triage that has breached this Policy, including, the right to terminate such employee's employment with Triage. In regard to Triage subcontractors and agents, Triage reserves the right to terminate their agreement with such subcontractors and agents if they breach this Policy, and to seek such relief allowed by the contract with such subcontractor or agent and applicable law.
- (b) **Injunctive Relief**. Notwithstanding any rights or remedies provided for in this Policy, Triage shall be entitled to obtain temporary and permanent injunctive relief from any court of competent jurisdiction to prevent or stop the unauthorized use or disclosure of PHI by Service Providers.
- (c) **Return or Destruction of PHI**. Upon the termination or expiration of Service Providers' employment, agency or subcontract relationship with Triage, Service Providers hereby agrees to return to Triage all PHI received from, or created or received by Service Providers, from or on behalf of Covered Entity.

5. **General Provisions**

- (a) **State Law Preemption**. Certain provisions of state law relating to privacy of PHI may not be preempted by, and may supersede, the HIPAA Regulations. With respect to such provisions of state law not preempted by the HIPAA Regulations, Service Providers shall maintain full and complete compliance with all state privacy requirements.
- (b) **Property Rights**. All PHI shall be and remain the property of Triage or the Covered Entity. Service Providers agrees that it shall not acquire any title or rights to any PHI.
- (c) **Changes**. This Policy may be unilaterally modified by Triage in response to new statutory or regulatory requirements related to HIPAA, the HIPAA Regulations or other applicable state or federal law relating to security and privacy of PHI. Any ambiguity in the language contained in this Policy shall be interpreted consistent with HIPAA Regulations.

Agreed to and Acknowledged by:

By: _____
(Signature)

Name: _____
(Print or Type)

Company: _____

Date: _____